

26TRCV01004 26TRCV01004

County: los-angeles

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Department: M

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Case Number: 26TRCV01004 Hearing Date: August 24, 2026 Dept: M

LOS ANGELES SUPERIOR COURT –
SOUTHWEST DISTRICT

Honorable Amy N. Carter Monday,
August 24, 2026

Department M Calendar No.

PROCEEDINGS

Edward Beiting, et al. v. Christopher Adams, et al.

26TRCV01004

1. Christopher

B. Adams, et al.'s Motion for Summary Judgment, or, in the Alternative, Summary
Adjudication

TENTATIVE RULING

Christopher B. Adams, et al.'s Motion for
Summary Judgment is granted.

Background

Plaintiff

filed the Complaint on March 19, 2026. Plaintiff alleges the following facts.

This is a residential unlawful detainer as to the following property: 5448 W. 142nd St. Hawthorne CA 90250.

Request
for Judicial Notice

Defendants'
request for judicial notice is granted pursuant to Evidence Code section 452(d)
and (h).

Motion
for Summary Judgment and/or Summary Adjudication

The
purpose of a motion for summary judgment or summary adjudication "is to provide
courts with a mechanism to cut through the parties' pleadings in order to
determine whether, despite their allegations, trial is in fact necessary to
resolve their dispute." (Aguilar v. Atlantic Richfield Co. (2001)
25 Cal.4th 826, 843.) "Code of Civil
Procedure section 437c, subdivision (c), requires the trial judge to grant
summary judgment if all the evidence submitted, and 'all inferences reasonably
deducible from the evidence' and uncontradicted by other inferences or
evidence, show that there is no triable issue as to any material fact and that
the moving party is entitled to judgment as a matter of law." (Adler
v. Manor Healthcare Corp. (1992) 7 Cal. App. 4th 1110, 1119.)

"On a
motion for summary judgment, the initial burden is always on the moving party
to make a prima facie showing that there are no triable issues of material
fact." (Scalf v. D. B. Log Homes, Inc. (2005) 128 Cal. App. 4th 1510,
1519.) A defendant moving for summary
judgment or summary adjudication "has met his or her burden of showing that a
cause of action has no merit if the party has shown that one or more elements
of the cause of action . . . cannot be established, or that there is a complete
defense to the cause of action." CCP §
437c(p)(2). "Once the defendant . . .
has met that burden, the burden shifts to the plaintiff . . . to show that a
triable issue of one or more material facts exists as to the cause of action or
a defense thereto." CCP § 437c(p)(2).
"If the plaintiff cannot do so, summary judgment should be
granted." Avivi v. Centro Medico Urgente Medical Center (2008) 159 Cal. App.
4th 463, 467.

“A

plaintiff or cross-complainant has met his or her burden of showing that there is no defense to a cause of action if that party has proved each element of the cause of action entitling the party to judgment on the cause of action. Once the plaintiff or cross-complainant has met that burden, the burden shifts to the defendant or cross-defendant to show that a triable issue of one or more material facts exists as to the cause of action or a defense thereto.” Code Civ. Proc., § 437c(p)(1).

“When

deciding whether to grant summary judgment, the court must consider all of the evidence set forth in the papers (except evidence to which the court has sustained an objection), as well as all reasonable inferences that may be drawn from that evidence, in the light most favorable to the party opposing summary judgment.” (Avivi, 159 Cal.App.4th at 467; CCP § 437c(c).)

Code

of Civil Procedure § 1161 states, in relevant part: “A tenant of real property is guilty of unlawful detainer: 3. When the tenant continues in possession, in person or by subtenant, after a neglect or failure to perform other conditions or covenants of the lease or agreement under which the property is held . . . and three days' notice, . . . in writing . . . shall have been served; 4. Any tenant, subtenant, or executor or administrator of that person's estate heretofore qualified and now acting, or hereafter to be qualified and act, assigning or subletting or committing waste upon the demised premises, contrary to the conditions or covenants of the lease.” Plaintiff also has the burden to establish the existence of a landlord/tenant relationship. See *Fredricksen v. McCosker* (1956) 143 Cal.App.2d 114, 116-17. Plaintiff must also show that the notice was proper which can be done by attaching the notice. See *Wilson v. Sadleir* (1915) 26 Cal.App. 357, 359.

Defendants

move for summary judgment. Defendants identify the following three grounds:

“(1)

Plaintiff's Complaint fails as a matter of law because the Three-Day Notice to Pay Rent or Quit dated March 8, 2026, on which the Complaint is exclusively predicated, is fatally defective and void on its face under *Bevill v. Zoura* (1994) 27 Cal.App.4th 694, in that it overstates the amount actually and

lawfully due [...];

(2) [...]

Plaintiff cannot establish a valid underlying tenancy because the operative June 14, 2024 Lease's own express condition precedent (Clause 39, requiring an executed personal-guaranty addendum) was never satisfied;

and

(3)[...] Plaintiff lacks standing to prosecute this action because he sues solely as Trustee of a trust never shown to be a party to, or the owner under, the operative Lease." (Notice of Motion, p. 3, lines 8-24).

Defendants

alternatively move for summary adjudication based on the first ground identified above.

Defendants

have met their initial burden to show that the cause of action for unlawful detainer cannot be established or that there is a complete defense to the cause of action. Thus, the burden shifts to Plaintiff to show that a triable issue of one or more material facts exists as to that cause of action. CCP § 437c(p)(2).

"A

three-day notice must contain the amount which is due. A notice which demands rent in excess of the amount due does not satisfy this requirement. This rule ensures that a landlord will not be entitled to regain possession in an unlawful detainer action unless the tenant has had the opportunity to pay the delinquent rent." *Bevill v. Zoura* (1994) 27 Cal.App.4th 694, 697 (internal citations and quotations omitted). Defendants submitted evidence that the three-day notice overstates the amount of rent due because it failed to take into account the \$10,350 deposit. The lease specifically states that "[t]his additional deposit shall be applied to rent monthly over the final three (3) months of the occupancy of the property." (Defendants' Ex. B, Section 3). Defendants states that this amount was not applied to the final three months of the occupancy. (Decl., Christopher Adams, ¶ 5).

Defendants

also point to Section 39 of the lease which states: "An addendum to this agreement is a personal guarantee by William and Jacqueline Adams ensuring the payment of the rent. This is (sic) lease agreement is contingent on this

addendum is (sic) an integral part of the agreement.” Defendants presented evidence that no personal guaranty was ever effectuated which by the terms of the lease invalidates the lease agreement. (Decl., Christopher Adams, ¶¶ 13-15).

Finally,

Defendants submitted evidence that the lease was signed by an individual named Edward Beiting. However, the Complaint was filed by Edward Beiting, Trustee of the Edward J Beiting I Revocable Living Trust, which is not the named lessor on the lease. Plaintiff submitted no evidence that the Trust is the successor to the named landlord. Bank of

America Nat. Trust & Savings Ass'n v. Button (1937) 23 Cal.App.2d 651, 652–653 (stating that a successor in interest of the lessor has standing to maintain an action so long as sufficient evidence of the assignment is presented).

The

burden shifts to Plaintiff to provide evidence to show the existence of a triable issue of material fact. CCP § 437c(p)(2). Plaintiff failed to file any written opposition to the motion.

Therefore,

Defendants' motion for summary judgment is granted.

Defendants

are ordered to give notice of this ruling.